

Anthropic Business Associate Addendum

This Anthropic Business Associate Addendum ("**BAA**") is entered into by Anthropic, PBC ("**Anthropic**" or "**Business Associate**") and the customer agreeing to these terms ("**Customer**") and is hereby incorporated into and forms a part of the services agreement entered into by Anthropic and Customer for Customer's use of Anthropic's products and services, which may be in the form of Anthropic's online [Commercial Terms of Service](#), unless the Parties have entered into a written agreement governing Customer's use of Anthropic's products and services (as applicable, the "**Terms**"). Each of Customer and Anthropic may be referred to herein as a "**Party**" and together as the "**Parties**." Any capitalized terms used in this BAA that are not defined in this BAA have the meaning provided in the Terms or HIPAA (defined below).

The terms of this BAA will control over any conflicting terms in the Terms. All other nonconflicting terms of the Terms remain valid and enforceable.

A. Recitals

Customer is either a "covered entity" or "business associate," as those terms are defined under the HIPAA. Customer is required to comply with HIPAA regarding the confidentiality and privacy of Protected Health Information.

Business Associate provides to Customer certain services ("**Eligible Services**") pursuant to the Terms between the Parties. In connection with the Eligible Services, the Parties anticipate that Business Associate may from time to time create, receive, maintain, or transmit Protected Health Information for or on behalf of Customer. To the extent required by HIPAA, by creating, receiving, maintaining, or transmitting Protected Health Information in its provision of Eligible Services to Customer, Business Associate may become a "business associate" or "subcontractor" of Customer, as such terms are defined under HIPAA, and, when applicable, will therefore have obligations regarding the confidentiality and privacy of Protected Health Information that Business Associate creates for, or receives from or on behalf of, Customer. This BAA applies solely to the extent that Anthropic processes Protected Health Information for or on behalf of Customer in a manner that results in Anthropic operating as a Business Associate to Customer under HIPAA. For the avoidance of doubt, Anthropic may provide additional services to Customer that do not involve Protected Health Information or are not Eligible Services subject to the requirements of this Addendum or HIPAA.

B. Definitions. For purposes of this BAA, capitalized terms will have the meanings ascribed to them below. All capitalized terms used but not otherwise defined herein or in the Terms will have the meaning ascribed to them by HIPAA.

"**Eligible Services**" are Anthropic's: (1) Claude Enterprise and (2) Anthropic's native (1P) API products, including, in each case, any associated customer support and optimization services and features, as provided pursuant to this BAA.

"**HIPAA**" means the Health Insurance Portability and Accountability Act of 1996 as amended and supplemented by the Health Information Technology for Economic and Clinical Health Act ("**HITECH**") and regulations promulgated thereunder.

"**Protected Health Information**" or "**PHI**" is any information to the extent received, maintained, or transmitted by Business Associate for or on behalf of Customer in connection with the provision of Eligible Services, that identifies an individual or might reasonably be used to identify an individual and relates to: (i) the individual's past, present or future physical or

mental health; (ii) the provision of health care to the individual; or (iii) the past, present or future payment for health care.

"Secretary" refers to the Secretary of the U.S. Department of Health and Human Services.

C. Business Associate Obligations

1. Use and Disclosure of PHI

- (a) Business Associate (i) will use or disclose PHI only in connection with fulfilling its duties and obligations under this BAA and the Terms and to perform the Eligible Services; (ii) will not use or disclose PHI other than as permitted or required by the Terms or required by law; (iii) will not use or disclose PHI in any manner that violates applicable federal and state laws or would violate such laws if used or disclosed in such manner by Customer; and (iv) will only use and disclose the minimum necessary PHI to perform the permitted purposes. Customer agrees that Business Associate may rely on Customer's instructions to determine if uses and disclosures meet this minimum necessary requirement.
- (b) Subject to the restrictions set forth throughout this BAA, Business Associate may use the information received from Customer if necessary for (i) the proper management and administration of Business Associate; or (ii) to carry out the legal responsibilities of Business Associate.
- (c) Subject to the restrictions set forth in this BAA, Business Associate may disclose PHI for the proper management and administration of Business Associate, provided that (i) disclosures are required by law or (ii) Business Associate obtains reasonable assurances from the person or entity to whom the information is disclosed that it will remain confidential and used or further disclosed only as required by law or for the purpose for which it was disclosed to the person or entity, and the person or entity notifies the Business Associate of any instances of which it is aware in which the confidentiality of the information has been breached.

- 2. Safeguards.** Business Associate will employ appropriate and reasonable administrative, technical, and physical safeguards to protect the confidentiality of PHI and to protect against the use or disclosure of PHI in any manner inconsistent with the terms of this BAA or the Terms in each case as required by HIPAA. Business Associate will comply, where applicable, with Subpart C of 45 C.F.R. Part 164 with respect to electronic PHI to protect against use or disclosure of such electronic PHI other than as provided for by this BAA or the Terms as required by HIPAA.

- 3. Audits and Records.** To the extent required by HIPAA and as applicable to Business Associate, Business Associate will make available to the Secretary Business Associate's internal practices, books and records relating to the use and disclosure of PHI solely for purposes of determining Customer's compliance with HIPAA.

4. Individuals' Rights to Their PHI

- (a) **Access Requests.** To the extent Business Associate maintains PHI in a Designated Record Set, to allow Customer (or the relevant "covered entity" where Customer acts as a "business associate") to respond to a request by an Individual for access to PHI pursuant to 45 CFR Section 164.524, Business Associate, within ten (10) business days upon receipt of written request by Customer, will make available to Customer such PHI.

If any Individual requests access to PHI directly from Business Associate, Business Associate will direct the Individual to make the request directly to the customer or, to the extent Business Associate knows the identity of the customer, forward such request to Customer.

As between the Parties, Customer will be responsible for determining whether to grant or deny an Individual's request for PHI and Business Associate will make no such determinations. Except as required by law, only Customer will be responsible for determining the release of PHI to an Individual pursuant to such a request. Any denial of access to PHI determined by Customer pursuant to 45 CFR Section 164.524, and conveyed to Business Associate by Customer, will be the responsibility of Customer, including resolution or reporting of all appeals or complaints arising from denials.

- (b) Amendment Requests.** To the extent Business Associate maintains PHI in a Designated Record Set, to allow Customer (or the relevant "covered entity" where Customer acts as a "business associate") to respond to a request by an Individual for an amendment to PHI, Business Associate will make available to Customer such PHI.

If any Individual requests amendment of PHI directly from Business Associate, Business Associate will direct the Individual to make the request directly to the customer or, to the extent Business Associate knows the identity of the customer, forward such request to Customer.

As between the Parties, Customer will be solely responsible for determining whether to grant or deny an Individual's request for an amendment to PHI and Business Associate will make no such determinations. Any denial of amendment to PHI determined by Customer pursuant to 45 CFR Section 164.526, and conveyed to Business Associate by Customer, will be the responsibility of Customer, including resolution or reporting of all appeals and/or complaints arising from denials.

Within ten (10) business days of receipt of a request from Customer to amend an individual's PHI in the Designated Record Set, Business Associate will incorporate, or make available PHI for Customer to incorporate, any approved amendments, statements of disagreement, and/or rebuttals into its Designated Record Set as required by 45 CFR Section 164.526.

- (c) Designated Record Sets.** The Parties acknowledge and agree that Business Associate shall not maintain PHI in a Designated Record Set for or on behalf of Customer. Customer shall maintain a separate copy of all PHI provided to Business Associate, including all information needed to respond to individuals as described in this Section 4.

- (d) Accounting Requests.** To allow Customer (or the relevant "covered entity" where Customer acts as a "business associate") to respond to a request by an Individual for an accounting pursuant to 45 CFR Section 164.528, Business Associate will make available to Customer such PHI as required by HIPAA.

If any Individual requests an accounting of disclosures of PHI directly from Business Associate, Business Associate will direct the Individual to make the request directly to the customer or, to the extent Business Associate knows the identity of the customer, forward such request to Customer as required by HIPAA.

As between the Parties, Customer will be solely responsible for preparing and delivering an accounting to an Individual.

5. **Subcontractors.** Business Associate will obtain and maintain a written agreement with each subcontractor that receives, creates, maintains, or transmits PHI for or on behalf of Business Associate whereby each subcontractor agrees to be bound by the same types of restrictions, terms, and conditions that apply to Business Associate pursuant to this BAA with respect to such PHI as required by HIPAA.
6. **Security Incidents or Breaches.** Business Associate will report any Security Incident or Breach to Customer promptly, and in any event within ten (10) business days after the date the Breach is discovered. The notice of a Breach will include, to the extent such information is known to Business Associate: (1) the identification of each individual whose PHI has been, or is reasonably believed to have been, accessed, acquired, or disclosed during the Breach; (2) the date of the Breach, if known, and the date of discovery of the Breach; (3) the scope of the Breach; and (4) the Business Associate's response to the Breach.

If Business Associate becomes aware of a use or disclosure of PHI that is not permitted under this BAA but does not constitute a Breach, Business Associate will report such use or disclosure to Customer within ten (10) business days after the date on which Business Associate becomes aware of such use or disclosure.

The Parties acknowledge that unsuccessful Security Incidents (e.g., pings and other broadcast attacks on a firewall, denial of service attacks, port scans, unsuccessful login attempts) occur within the normal course of business and the Parties stipulate and agree that this paragraph constitutes notice by Business Associate to Customer for such unsuccessful Security Incidents.

D. Customer Obligations

1. Customer will not request Business Associate to use or disclose PHI in any manner that would violate HIPAA or any other applicable federal and state laws. Customer will only use or disclose the minimum amount of PHI necessary when using the Eligible Services.
2. Customer will use or disclose PHI through the Eligible Services only as permitted by and in accordance with HIPAA or any other applicable federal and state law. Customer will be compliant with all applicable laws and regulations pertaining to PHI Customer shares with, sends, or directs to be sent, to Business Associate.
3. Customer will notify Business Associate of any limitation in any applicable notice of privacy practices in accordance with 45 CFR Section 164.520, to the extent that such limitation may affect Business Associate's use or disclosure of PHI.
4. Customer will notify Business Associate of any changes in, or revocation of, permission by Individual to use or disclose PHI, to the extent that such changes may affect Business Associate's use or disclosure of PHI.
5. Customer will notify Business Associate of any restriction to the use or disclosure of PHI that Customer has agreed to in accordance with 45 CFR Section 164.522, to the extent that such restriction may affect Business Associate's use or disclosure of PHI.
6. Customer will be solely responsible for its obligations to retain PHI under HIPAA, and the Terms will set forth Business Associate's obligations to retain PHI. For clarity, Customer acknowledges and agrees that any Prompts and Outputs (as defined in the Terms) will be retained by Business Associate pursuant to the Terms.

7. Customer acknowledges and agrees that Customer controls how the Eligible Services are used and configured and that some uses and configuration options available in the Eligible Services could be inconsistent with the requirements of HIPAA. Business Associate is not responsible for any configuration choices or usage decisions made by Customer. Customer further acknowledges and agrees that using the Eligible Services in a manner that complies with HIPAA requires that Customer complies with the Anthropic [Implementation Guide for HIPAA Entities](#), as applicable for Customer's Eligible Services. Customer represents, warrants, and covenants that it has received, reviewed and will, at all times, comply with and appropriately inform its authorized users regarding the appropriate use of the Eligible Services, including the Implementation Guide for HIPAA Entities, as applicable and as may be updated and made available to Customer from time-to-time by Business Associate. Without limitation to the foregoing, Customer represents, warrants, and covenants that any and all data it submits to, collects with or uses through the Services in a manner that does not comply with the Implementation Guide for HIPAA Entities is not PHI.

E. Term and Termination

1. **Term.** This BAA is effective as of the date signed by both Parties below and will terminate upon (a) termination of the Terms, (b) as expressly authorized by Section E.2, or (c) when all PHI has been disposed of in strict compliance with the terms of this BAA, whichever occurs later.
2. **Termination for Material Breach.** Where either Party has knowledge of a material breach by the other Party, the non-breaching Party will provide the breaching Party with an opportunity to cure. Where said breach is not cured to the reasonable satisfaction of the non-breaching Party within thirty (30) days of the breaching Party's receipt of notice from the non-breaching Party of said breach, the non-breaching Party will terminate this BAA and the portion(s) of the Terms affected by the material breach. Where either Party has knowledge of a material breach by the other Party and cure is not possible, the non-breaching Party will terminate this BAA and the portion(s) of the Terms affected by the material breach.
3. **Return or Destruction of PHI.** While Customer continues to have access to the Eligible Services under this BAA, depending on the type of Eligible Services, Customer may have the ability to use the export functionality to export Customer Data from the Services, as further described in the Anthropic Help Center. Business Associate will maintain and permit access to Customer Data (including any PHI) in its possession for thirty (30) days following the termination or expiration of this BAA. Thereafter or upon termination of this BAA for any reason, Business Associate will:
 - (a) If feasible as determined by Business Associate, return or destroy all PHI created, received, maintained, or transmitted by Business Associate for or on behalf of Customer that Business Associate or any of its subcontractors and agents still maintain in any form, and, in those cases, Business Associate will retain no copies of such information; or
 - (b) If Business Associate determines that such return or destruction is not feasible, extend the protections of this BAA to such information and limit further uses and disclosures to those purposes that make the return or destruction of the PHI infeasible, in which case Business Associate's obligations under this Section E.3.b will survive the termination of this BAA.

F. General

- 1. Amendment.** If any of the regulations promulgated under HIPAA or interpretive guidance issued by the U.S. Department of Health and Human Services are amended or interpreted by the Secretary in a manner that requires amendment of this BAA to comply with HIPAA, the Parties will cooperate in good faith to amend this BAA to the extent necessary to comply with such amendments or interpretations. If Business Associate and Customer are not able to reach agreement on amendments to this BAA, or a Party believes in good faith that the change makes it commercially impracticable to provide and/or use the Eligible Services in compliance with applicable law, either Party may terminate this BAA by giving written notice at least thirty (30) days prior to the termination date specified in such notice.
- 2. Interpretation.** Any ambiguity in this BAA will be resolved to permit the Parties to comply with HIPAA.
- 3. Integration.** This BAA supersedes all other understandings or agreements between the Parties regarding the subject matter of this BAA, unless the Parties have entered into a written, signed BAA covering the Eligible Services (in which case the signed BAA applies).